

BC561928 BC561928

County: los-angeles

Division: Civil Law and Motion

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Case Number: BC561928 Hearing Date: August 7, 2026 Dept: 732

Jane Ramsay v. Robert Weinbach, et al.

Friday, August 7, 2026

CASE NUMBER: BC561928

UNOPPOSED

Plaintiff Jane Ramsay's Motion to Seal Opposition to Motion to Compel Arbitration and Related Exhibits

Facts: This is an action for fraud and breach of contract. The Complaint alleges as follows. Plaintiff Jane Ramsay ("Plaintiff") entered into an agreement to invest money into a film production at the solicitation of Defendant Robert Weinbach ("Defendant"), who promised to double her investment. (Complaint ¶¶ 7–8.) This solicitation violated several securities laws, and Plaintiff at the time lacked the mental capacity to enter into the agreement following the death of her mother. (Complaint ¶¶ 10–14.)

Procedural History: Plaintiff filed the Complaint on October 23, 2014, alleging eight causes of action:

Intentional Misrepresentation

Negligent Misrepresentation

Breach of Contract

Breach of Implied Covenant of Good Faith and Fair Dealing

Unjust Enrichment

Conversion

Breach of Fiduciary Duty

Intentional Infliction of Emotional Distress

On June 10, 2015, the court granted Defendants motion to compel arbitration.

Judgment was entered on July 8, 2015 in favor of Defendants.

Plaintiff filed the present motion to seal on May 21, 2026. No opposition was filed. On June 23, 2026, the court continued the motion to August 7, 2026.

Discussion:

MOTIONS TO SEAL

The court may order that a record be filed under seal only if it expressly finds facts that establish:

There exists an overriding interest that overcomes the right of public access to the record;

(2) The overriding interest supports sealing the record;

(3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;

(4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules Ct., rule 2.550(d).)

A party moving to seal records must make a sufficient evidentiary showing to overcome the presumed right of public access to the documents. (see *Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97, 108 distinguished on unrelated grounds in *Curtis v. Superior Court* (2021) 62 Cal.App.5th 453, 471.)

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not

inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

Plaintiff Jane Ramsay (“Plaintiff”) in pro per moves to seal various documents associated with the motion to compel arbitration filed by Defendants Robert Weinbach and Cyclone Productions, Inc. (“Defendants”) on February 23, 2015, and granted by the court on June 10, 2015, more than ten years before the present motion to seal was filed.

Plaintiff argues that her opposition materials, Defendants’ reply materials, and the court’s ruling contain references to a declaration nominally submitted by herself, in which she attests to various internal and external factors that allegedly deprived her of capacity to enter into the investment agreement which is the subject of this action. Plaintiff argues that at least one of the factors identified, referenced in the court’s ruling granting the motion, was a fabrication of her attorney, and that the remaining factors constitute private matters that she had not authorized her attorney to disclose. (Ramsay Decl. ¶¶ 4–15.) Plaintiff contends that these matters intrude upon her privacy and that she is prejudiced by permitting them to remain in a publicly accessible document. (Ramsay Decl. ¶ 10.)

Plaintiff notes that she complained to the California State Bar regarding her former counsel in this matter in 2016, and that the attorney, Michael J. Gulden, was disbarred in 2019. (Ramsay Decl. ¶ 2, Exhs. A, B.) Plaintiff states that she recently reviewed the old declarations in connection with a “new action,” and was shocked to find the misrepresentations and disclosures they contained. (Ramsay Decl. ¶ 8.)

To establish that an overriding interest is sufficient, plaintiff must clearly identify the interest and demonstrate “a substantial probability that it will be prejudiced absent sealing or closure.” (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283.) Plaintiff has not demonstrated an overriding interest in the bulk of the matters identified. Plaintiff concedes that much of what is contained in her declaration is true, but argues that it consists of items from her private life and medical history not pertinent to the case and serving no purpose but to sensationalize her life. (Ramsay Decl. ¶ 4.) Privacy may indeed furnish a basis for an order sealing records. (See NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1204.) But it is not true that they are irrelevant to the present action, as Plaintiff tendered the issue of her capacity to sign the agreement in both the Complaint (Complaint ¶ 14) and the opposition to the motion to compel arbitration, which was almost entirely based on her lack of capacity to sign the agreement. Plaintiff does not deny tendering the issue of her capacity in this action. As such, the privacy rights she articulates with respect to the present papers were waived even prior to the long delay preceding the present motion. (See *People v. Yang* (2021) 67 Cal.App.5th 1, 48 [tender of issue waives psychotherapist-patient privilege]; see Evid. Code, § 1016, subd. (a); *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840, 848; *In re Lifschutz* (1970) 2 Cal.3d 415, 439; *Patterson v. Superior Court* (1983) 147 Cal.App.3d 927, 930.)

Plaintiff arguably possesses an overriding interest favoring sealing the allegation of drug use contained in her earlier declaration, repeated in other papers, that she now contends was fabricated by her now-disbarred attorney. A false accusation of illicit drug use identified constitutes a defamatory statement the truth of which Plaintiff now denies. (Ramsay Decl. ¶¶ 4–5; See *Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 387.) However, sealing the records identified is not the least restrictive means by which to address the interest that Plaintiff identifies. (Cal. Rules Ct., rule 2.550(d).) Such interest may be preserved by the filings now in the public record noting Plaintiff’s denial of the allegation, which denial is the only evidence before the court supporting Plaintiff’s proposed sealing of the records.

Finally, seeking relief after the filing of the pleadings and the significant lapse of time presents grounds for a finding of any waiver of the right to try and seal the documents. There is no indication the documents were presented on condition of a pending motion to seal, or otherwise improperly disclosed privileged information. (*Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 598-601.)

The motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

JANE RAMSAY.,

Plaintiff,

v.

ROBERT WEINBACH., et al.,

Defendants.

Case No.: BC561928

Hearing Date: June 23, 2026

[TENTATIVE] RULING RE:

Plaintiff Jane Ramsay's Motion to Seal Opposition to Motion to Compel Arbitration and Related Exhibits

Plaintiff Jane Ramsay's Motion to Seal Opposition to Motion to Compel Arbitration and Related Exhibits is DENIED.

Plaintiff to give notice.

Dated: June 23, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court